

August 28, 2026
Dept. 9
Civil Tentative Rulings

10.	26CV1828	AVALON KATZMAN (A MINOR, BY AND THROUGH HER GUARDIAN AD LITEM, JANIELLE KATZMAN) VS. JOHANNA BENOIT
COMPROMISE: MINOR CLAIM		

On July 1, 2026, Janielle Katzman, a parent of the minor who is the subject of this filed an ex parte application to be appointed guardian ad litem for the purpose of this proceeding, which was approved by the Court on July 7, 2026.

This is a Petition to compromise a minor's claim. The Petition states the minor sustained air in chest cavity, blood loss, lacerations, scratches, bruising, and significant emotional distress from the dog attack/personal injury incident which occurred on December 13, 2025. A copy of the accident investigation report was not filed with the Petition, as required by Local Rule 7.10.12A(4). Petitioner requests the court authorize a compromise of the minor's claim against Defendant in the gross amount of \$300,000.00.

The Petition states the minor incurred \$33,249.13 in medical expenses, of which the negotiated amount of \$9,006.85 will be deducted from the settlement. This includes reimbursement of \$15,000 in medical expenses to be paid to private health insurance. Copies of invoices for the claimed medical expenses are not attached to the Petition as required by Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(6). Petitioner has not paid any of the fees or expenses for which reimbursement is requested.

The Petition states that the minor has fully recovered and there are no permanent injuries. A doctor's report concerning the minor's condition and prognosis of recovery is attached, as required by Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(3).

The minor's attorney requests attorney's fees in the amount of \$75,000.00, which represents 25% of the gross settlement amount. The court uses a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability. (Local Rules of the El Dorado County Superior Court, Rule 7.10.12A.(8); California Rules of Court, Rule 7.955(a)(1).) The Petition does include a Declaration by the attorney as required by California Rules of Court, Rule 7.955(c).

With respect to the \$209,103.22 due to the minor, the Petition requests that the funds be deposited in insurance accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. See attachment 18(b)(2), which includes the name, branch, and address, of each depository.

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The net balance of proceeds for claimant includes expenses (other than medical) in the amount of \$896.78. It is unclear what these expenses are for.

TENTATIVE RULING #10:

APPEARANCES ARE REQUIRED ON FRIDAY, AUGUST 28, 2026, AT 8:30AM IN DEPARTMENT NINE.